

22STCV31215 22STCV31215

County: los-angeles

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Department: 413

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Case Number: 22STCV31215 Hearing Date: August 4, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 08/04/2026

CASE NUMBER: 22STCV31215

CASE NAME: MARTA MOYA, et al. vs CONTRERAS TRUCKING INTERNAT...

MOVING PARTY: Plaintiffs Marta Moya and Matthew
Balderama

OPPOSING PARTY: Defendants Contreras Trucking
International, Inc.; Hector J. Contreras; David Medrano Ruiz

PROCEEDING: Motion for leave to amend

RULING SUMMARY: Plaintiffs Marta Moya and Matthew
Balderama's Motion for Leave to Amend is granted. Plaintiffs shall file their First Amended Complaint
forthwith. The Court sets an Order to
Show Cause re Amended Complaint for _____, 2026, at 8:30AM.

Background

On

September 26, 2022, Plaintiffs Marta Moya ("Moya") and Matthew Balderama
("Balderama and collectively "Plaintiffs") filed their Complaint against
Defendants Contreras Trucking International, Inc. ("Contreras Trucking"); Hector
J. Contreras dba Contreras Trucking, Inc. ("Contreras"); and David Medrano Ruiz

("Ruiz" and with Contreras and Contreras Trucking, "Defendants") alleging one cause of action for Motor Vehicle Negligence.

Plaintiffs

allege that on July 31, 2020, at Interstate 10, westbound, approximately 250 feet east of Olympic Boulevard, Los Angeles, CA, Defendants were negligent and the proximate cause of Plaintiffs' injuries and damages. Ruiz is alleged to be the driver and working for Contreras and Contreras Trucking, which owned and entrusted the vehicle to Ruiz.

On

December 3, 2024, Defendants filed their Answer.

On

January 8, 2026, Defendants filed an Ex Parte Application to continue the date of trial, which the Court granted. The jury trial scheduled for March 09, 2026 was continued to April 10, 2026.

On January

16, 2026, the parties entered into a stipulation in which Moya limited her recovery of damages from Defendants to economic damages only, in accordance with Civil Code section 3333.4/Prop. 213.

On June

5, 2026, Plaintiffs filed this Motion for Leave to Amend ("Motion for Leave") to file a First Amended Complaint ("FAC").

On July

08, 2026, Plaintiffs filed an Ex Parte Application to advance the hearing date on the Motion for Leave due to the upcoming trial date. The application was granted, and the jury trial scheduled for April 10, 2026 was continued to April 06, 2027.

On July

21, 2026, Defendants filed their Opposition to Plaintiff's Motion to Amend, and on July 28, 2026, Plaintiffs filed their Reply.

LEGAL

STANDARD

Trial

courts may, in furtherance of justice and on any proper terms, allow a party to amend any pleading. (Code Civ. Proc., § 473(a)(1); *Branick v. Downey Savings & Loan Ass'n* (2006) 39 Cal.4th 235, 242.) Trial courts may also, in their discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars . . . (Code Civ. Proc. § 473(a); *Branick*, *supra*, 39 Cal.4th at 242.) Leave to amend is generally liberally granted, provided there is no statute of limitations concern. (*Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 411.) Additionally, “judicial policy favors resolution of all disputed matters in the same lawsuit.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047.) Trial courts may deny the plaintiff’s leave to amend if there is prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. (*Branick*, *supra*, at 242.)

¿

Under

California Rules of Court, Rule 3.1324, a motion to amend a pleading before trial must (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Rules of Court, Rule 3.1324(a).) A separate supporting declaration specifying (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reason why the request for amendment was not made earlier must accompany the motion. (*Id.*, Rule 3.1324(b).)

DISCUSSION

Plaintiff

seeks leave to amend the complaint to add punitive damages. This decision is based on the testimony of defendant Contreras Trucking’s Person Most Knowledgeable (“PMK”), Espinoza Lopez (“Lopez”), in a deposition that occurred

on May 12, 2026. Lopez identified repeated California Highway Patrol ("CHP") citations and inspection reports documenting brake deficiencies, inoperative turn signals, and other inoperative safety equipment, and air loss violations on vehicles Mr. Ruiz operated, beginning as early as April 2018 and continuing through at least December 2019; a failure to obtain collision reports, conduct an investigation, or perform statutory duties after the collision with Plaintiffs; a defective brake certification; and no certification document for Ruiz. (Decl. of Aram Zohrabian ("Zohrabian Decl.") ¶¶ 23-26.)

Defendants

first argue that Plaintiffs have not met the requirements of the California Rules of Court, Rule 3.1324(b), specifically focusing on Zohrabian's declaration. That Rule 3.1324(b) provides:

A separate declaration must accompany the motion and must specify:

- (1) The effect of the amendment;
- (2) Why the amendment is necessary and proper;
- (3) When the facts giving rise to the amended allegations were discovered; and
- (4) The reasons why the request for amendment was not made earlier

Zohrabian's

declaration, though not as clear as the motion itself, explains that Plaintiffs deposed Defendants PMK on May 12, 2026 and found the basis for punitive damages.

Defendants

have a similar argument regarding Rules of Court, Rule 3.1324(a), concerning allegations proposed to be added and deleted identified by number. The motion itself discusses the additions and where in Section V, and Zohrabian's declaration identifies the amendment sought and attached the proposed First Amended Complaint as Exhibit A. Plaintiffs' presentation of the changes is

sufficient.

Defendants'

argument regarding dilatory tactics is not persuasive. The gravamen of Defendants' argument is that Lopez's testimony confirmed the contents of documents produced on April 28, 2026. Defendants cite no authority that a two-month delay in a civil action can be taken as dilatory. Further, the PMK testimony constitutes the evidentiary basis for Plaintiffs proposed amendment.

Defendants'

argument against punitive damages is not proper in opposing a motion for leave to amend; the validity of punitive damages may be raised in a responsive pleading after the FAC has been filed.

Finally,

Defendants argue that the proposed amendments would cause severe prejudice, because (1) plaintiff engaged in dilatory tactics, and (2) adding the punitive damages claim will turn the case into one for negligent hiring and retention. Defendants' first argument has been addressed above. Regarding the second argument, there is no new cause of action in the proposed FAC. The proposed FAC maintains the Motor Vehicle Negligence claim and has added no new cause of action.

Conclusion

Plaintiffs

Marta Moya and Matthew Balderama's Motion for Leave to Amend is granted. Plaintiffs shall file their First Amended Complaint

forthwith. The Court sets an Order to

Show Cause re Amended Complaint for _____, 2026, at 8:30AM.

Date: 08/04/2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court